

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: September 12, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 5	25CV457660	SMTC CORPORATION et al vs CHARGEPOINT, INC	Hearing: Pro Hac Vice Counsel The unopposed motion is GRANTED. The applicant shall submit the final order within 10 days of the date of the hearing.

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Calendar Line 2

Case Name: *Deanna Thompson v. FCA US, LLC et al.*

Case No.: 24CV455071

I. BACKGROUND

Plaintiff Deanna Thompson (“Plaintiff”) brings this lawsuit against defendants FCA US, LLC (“FCA” or “Defendant”) and Fremont Chrysler Dodge Jeep Ram (“Fremont CDJR”).

According to the allegations of the first amended complaint (“FAC”), on or around August 16, 2017, Plaintiff entered into a warranty contract with FCA regarding a 2017 Dodge Durango (“Subject Vehicle”), manufactured and distributed by FCA. (FAC, ¶ 7, Ex. A.) Defendant also provided Plaintiff with a California Emission Warranty. (FAC, ¶ 8.) Plaintiff reviewed marketing materials, viewed FCA’s window sticker, conferred with sales representatives, and took the Subject Vehicle for a test drive. (FAC, ¶ 10.) Then Plaintiff leased the Subject Vehicle and thereafter exercised the purchase option from Fremont CDJR. (FAC, ¶ 9.) At no point prior to leasing was Plaintiff told that the Subject Vehicle’s engine was defective. (FAC, ¶ 10.)

Around November 20, 2018, Plaintiff presented the Subject Vehicle to FCA’s authorized repair facility with several complaints and the technician inspected and performed warranty repairs on the Subject Vehicle. (FAC, ¶ 12.) When Plaintiff picked up the vehicle, she was told that it was repaired and working. (*Ibid.*)

Around January 2, 2019, Plaintiff presented the Subject Vehicle to the repair facility with additional complaints and the technician inspected and performed warranty repairs on the Subject Vehicle. (FAC, ¶ 12.) Plaintiff was told the Subject Vehicle was repaired and working. Similar events occurred on around July 24, 2019, August 13, 2020, and July 12, 2022. (FAC, ¶¶ 14-16.)

The value of the Subject Vehicle is worthless and Plaintiff alleges she purchased it as manufactured with FCA’s defective engine. (FAC, ¶¶ 23-24.) On information and belief, Plaintiff alleges that FAC knew, but failed to disclose, since prior to Plaintiff’s purchase, that the Subject Vehicle had one or more defects that can result in loss of power, stalling, engine running rough, or engine misfires which can suddenly impact the driver’s ability to the control the vehicle or cause a non-collision vehicle fire. (FAC, ¶¶ 25-28.)

On December 27, 2024, Plaintiff filed the initial complaint. On May 21, 2025, Plaintiff filed the FAC, asserting the following causes of action:

- 1) **VIOLATION OF CIVIL CODE SECTION 1793.2, SUBDIVISION (D);**
- 2) **VIOLATION OF CIVIL CODE SECTION 1793.2, SUBDIVISION (B);**
- 3) **VIOLATION OF CIVIL CODE SECTION 1793.2, SUBDIVISION (A)(3);**
- 4) **BREACH OF THE IMPLIED WARRANTY OF MERCHANTABILITY;**
- 5) **FRAUDULENT INDUCEMENT – CONCEALMENT; AND**
- 6) **NEGLIGENT REPAIR [AGAINST FREMONT CDJR].**